

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Luke Petrinovic	Team: Team # 1	CCRB Case #: 201311318	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/30/2013 12:33 AM	Location of Incident: § 87(2)(b) and West 234th Street		18 Mo. SOL 5/30/2015		Precinct: 50
Date/Time CV Reported Tue, 12/03/2013 12:01 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 12/03/2013 12:01 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brendan Reilly	09343	952155	050 PCT
2. LT Paul McMahon	00000	899574	050 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Gunther	26221	950546	050 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brendan Reilly	Abuse: PO Brendan Reilly questioned § 87(2)(b)	A . Substantiated
B . LT Paul McMahon	Discourtesy: LT Paul McMahon spoke rudely to § 87(2)(b)	B . Unsubstantiated
C . LT Paul McMahon	Force: LT Paul McMahon used a chokehold against § 87(2)(b)	C . Unsubstantiated
D . POM Brendan Reilly	Abuse: PO Brendan Reilly frisked § 87(2)(b)	D . Substantiated
E . LT Paul McMahon	Abuse: LT Paul McMahon searched the car in which § 87(2)(b) was an occupant.	E . Unsubstantiated

Case Summary

On December 3, 2013, § 87(2)(b) filed this complaint over the phone with the CCRB (encl. B 1-2). On November 30, 2013, at approximately 12:33 a.m., § 87(2)(b)'s car was pulled over by LT Paul McMahon, PO Brendan Reilly, and PO Michael Gunther, all assigned to the 50th Precinct, at the intersection of § 87(2)(b) and West 234th Street, in the Bronx. The following misconduct is alleged to have occurred:

- **Allegation A – Abuse of Authority: PO Brendan Reilly questioned** § 87(2)(b)
§ 87(2)(g)
it is recommended that **Allegation A** be *substantiated*.
- **Allegation B – Discourtesy: LT Paul McMahon spoke rudely to** § 87(2)(b)
- **Allegation C – Force: LT Paul McMahon used a chokehold against** § 87(2)(b)
§ 87(2)(g)
As such, it is recommended that *allegations B and C* be closed as *unsubstantiated*.
- **Allegation D – Abuse of Authority: PO Brendan Reilly frisked** § 87(2)(b)
§ 87(2)(g)
As such, it is recommended that *allegation D* be *substantiated*.
- **Allegation E – Abuse of Authority: LT Paul McMahon searched the car in which** § 87(2)(b)
§ 87(2)(g)
was an occupant.
As such, it is recommended that *allegation E* be closed as *unsubstantiated*.

As § 87(2)(b) was arrested during the incident, § 87(2)(b) mediation could not be offered in this case.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a black male, § 87(2)(b), with black hair and brown eyes. § 87(2)(b)

CCRB Statement

On December 9, 2013, § 87(2)(b) provided a phone statement (encl. B 3), and on December 16, 2013, he was interviewed at the CCRB (encl. B 4-11). On April 24, 2014, and September 29, 2014, October 28, 2014, and December 18, 2014, § 87(2)(b) answered follow up questions (encl. B 12-15). § 87(2)(g)

On November 30, 2013, at approximately 12:33 a.m., § 87(2)(b) was in his car dropping off his two adult sons, § 87(2)(b) and § 87(2)(b) at § 87(2)(b) in the Bronx.

§ 87(2)(b) double parked outside the building and his sons exited the car. § 87(2)(b) immediately entered the building. § 87(2)(b) stood on the sidewalk approximately one car width away from § 87(2)(b)'s car. § 87(2)(b) turned off his engine, headlights, and put his

hazard lights on. § 87(2)(b) and § 87(2)(b) spoke briefly. § 87(2)(b) § 87(2)(b) stayed on the sidewalk one car width away from § 87(2)(b)'s car; he never leaned into the car, or exchanged any items with § 87(2)(b).

§ 87(2)(b) noticed an unmarked car parked across the street, facing the opposite direction, with three officers inside: PO Brendan Reilly, identified by the investigation, who § 87(2)(b) could not describe other than being a uniformed white male; LT Paul McMahon, identified by the investigation and described as a white male, in uniform, 5'9" tall, with an average build, in his 40's, with short salt and pepper hair; and PO Michael Gunther, identified by the investigation and described as a white male, in uniform, 6'2" tall, muscular build, with brown hair, in his late 20's.

§ 87(2)(b) knew that they were police officers because he had seen them in the area before, and knew that they watched § 87(2)(b) § 87(2)(f). § 87(2)(b) stared at the officers, and they stared back.

§ 87(2)(b) § 87(2)(b) finished talking with § 87(2)(b) and went into § 87(2)(b) § 87(2)(b) pulled away, heading southbound on § 87(2)(b). His headlights were off as he drove away. As soon as he got to the corner of West 232nd Street, the officers made a U-turn, pulled up behind him, and turned on the police lights. § 87(2)(b) drove one more short block to West 233rd Street, and pulled over.

The officers ran up to § 87(2)(b) with their flashlights shining into his car. § 87(2)(b) did not make any movements inside his car, and sat still with his hands in front of him. PO Reilly opened the front passenger's side door. LT McMahon and PO Gunther approached the driver's side. § 87(2)(b) rolled down the driver's window. PO Reilly said, "Open your mouth," and shined his flashlight in § 87(2)(b)'s face. § 87(2)(b) turned towards him and opened his mouth. LT McMahon said, "Where're the drugs? Where're the drugs?" § 87(2)(b) responded, "Officer there are no drugs in the car. You've got to be kidding me, you just saw me let my kids out in front of the door."

LT McMahon said, "I did not see your fucking sons. I did not see anyone get out of your fucking car." LT McMahon did not reach into the car as they spoke. He appeared focused on § 87(2)(b) and was not looking around the interior of the car with his flashlight. § 87(2)(b) responded, "I was right across from you, there's no way you did not see me drop them off." § 87(2)(b) got angry and raised his voice. He pointed at LT McMahon and shook his finger. § 87(2)(b) made no other gestures, and did not reach to any parts of the car.

LT McMahon reached into the car with his left hand and grabbed § 87(2)(b) at the base of the front of his neck, where his neck and chest meet, and squeezed for two to three minutes. § 87(2)(b)'s breathing was not restricted and he did not sustain any injuries. § 87(2)(b) pushed LT McMahon's hand away. LT McMahon then took a few steps back toward the front driver's side tire.

PO Gunther opened the driver's side door and § 87(2)(b) exited on his own. The officers did not tell him to exit the car. PO Gunther escorted § 87(2)(b) to the back of the police car, and directed him to place his hands on the trunk, which he did. § 87(2)(b) was looking ahead, towards his car. Either PO Reilly or PO Gunther asked § 87(2)(b) if he had anything on him, and § 87(2)(b) did not respond. The officer ran his hands over § 87(2)(b)'s clothing from his shoulders down to his ankles and then handcuffed him.

§ 87(2)(b) watched LT McMahon approach the open driver's side door and lean into § 87(2)(b)'s car. § 87(2)(b) could not see what LT McMahon was doing. § 87(2)(b) was placed in the back of the police car. After that, LT McMahon entered the driver's seat of § 87(2)(b)'s car, and drove away. The officers never asked § 87(2)(b) for his identification or registration.

§ 87(2)(b) was released from the 50th Precinct stationhouse with a DAT. § 87(2)(b) was unaware of what he was arrested for.

§ 87(2)(b) believed that that either PO Gunther or PO Reilly returned his car to him. § 87(2)(b) noticed that the items inside of his vehicle, including the trunk, had been moved around and rearranged. Nothing was missing from the car.

After § 87(2)(b) was informed that the penal code listed on his DAT was for § 87(2)(b) he stated that in June of 2013, he confiscated a knife from a child in an afterschool basketball program. § 87(2)(b) placed the knife in the bottom of his center console. § 87(2)(b) could not recall how large the knife was or anything about its make or model. It was a folding knife that opened by pulling the blade out of the handle. It could only be closed by pressing a lever that locks the blade in place. § 87(2)(b) forgot about the knife in his center console.

NYPD Statements:

Subject Officer: LT PAUL MCMAHON

- *LT Paul McMahon is a white male, § 87(2)(b), with brown hair and brown eyes. At the time of the incident, he was § 87(2)(b).*
- *On November 30, 2013, LT McMahon worked from 5:30 p.m., on the previous day, to 2:15 a.m., and was assigned to patrol. He worked in uniform, with PO Reilly and PO Gunther, and they were assigned to an unmarked silver Ford Fusion.*

Memo Book

At 11:20 p.m., two individuals were arrested by PO Pimentel in front of § 87(2)(b) for § 87(2)(b). At 11:25 p.m., LT McMahon took an administrative break, and at 12:25 a.m. he went back on patrol with PO Gunther and PO Riley. At 12:30 a.m., PO Reilly arrested one individual at the corner of 234th Street and § 87(2)(b) for § 87(2)(b). (encl. C 22-24).

CCRB Statement

On February 19, 2014, LT McMahon was interviewed at the CCRB (encl. C 25-28).

LT McMahon was on patrol with PO Reilly and PO Gunther. They left the stationhouse, after processing the arrests of two individuals arrested in front of § 87(2)(b) earlier that night. LT McMahon observed an individual leaning into a double parked car outside § 87(2)(b) and engaging in a drug transaction. Both individuals were arrested and drugs were recovered. There were no un-apprehended suspects. § 87(2)(b) is a drug prone location.

The officers drove down § 87(2)(b) towards § 87(2)(b). They were not going there for a specific reason, but rather just on routine patrol. § 87(2)(b) is a two way street, with one lane of traffic in both directions. LT McMahon observed a car double parked

in front of the location, facing the opposite direction of LT McMahon's car, with its head lights off. § 87(2)(b) was seated in the driver's seat of the car. There is usually a shortage of parking in that area. There was a male leaning in through the passenger side window.

The fact that § 87(2)(b) was double parked with his lights off at a drug prone location late at night while another man leaned into his vehicle warranted investigation. LT McMahon wanted to engage § 87(2)(b) in a conversation to determine what was going on. He could not tell whether § 87(2)(b) was involved in a drug transaction, but wanted to investigate. LT McMahon did not intend to issue § 87(2)(b) a parking summons. The officers briefly discussed the observation. They made a U-turn shortly after passing the vehicle.

§ 87(2)(b) made eye contact with LT McMahon. LT McMahon believed that § 87(2)(b) realized they were police. § 87(2)(b) abruptly pulled away and started driving down § 87(2)(b) without his headlights on. They turned on their lights and sirens and followed him. LT McMahon could not recall if § 87(2)(b) immediately pulled over, but there was no pursuit. They stopped the car because of the VTL violation and to investigate § 87(2)(b)'s presence in the area.

LT McMahon approached the driver's side, and one officer, who LT McMahon believed was PO Reilly, approached the front passenger's side. The other officer went to the back of § 87(2)(b)'s car. Before LT McMahon could say anything, § 87(2)(b) shouted, "You know I just dropped my fucking son off and you've still got to bother me." § 87(2)(b) repeated similar statements. LT McMahon replied, "I didn't see you drop anyone off." LT McMahon never directed any profanity at § 87(2)(b) and never said, "I did not see your fucking sons."

LT McMahon noticed a folding knife in plain view on top of the center console of § 87(2)(b)'s car, when he shined his flashlight into the vehicle. LT McMahon could not describe the location of the knife in any more detail, and could not recall what the center console area of the car looked like. He could not recall there being any other objects on top of the console. He did not know if he could have seen the knife without his flashlight. The knife appeared to be a folding knife, it was closed and around four inches long. He could not tell if it was a gravity knife, or whether it was another kind of illegal knife when he first saw it.

§ 87(2)(b) lunged towards the window and pointed his finger at LT McMahon and said, "You're a fucking liar." § 87(2)(b)'s hand came out of the car, through the window. LT McMahon took a defensive position and put his hand out to block § 87(2)(b) but did not make physical contact with him.

He instructed § 87(2)(b) to step out of the car. § 87(2)(b) complied and LT McMahon passed him to either PO Gunther or PO Reilly. LT McMahon touched § 87(2)(b)'s back to guide him. This was the only time LT McMahon touched § 87(2)(b). LT McMahon never grabbed § 87(2)(b) by the neck, and never choked him.

LT McMahon removed § 87(2)(b) from the car because of § 87(2)(b)'s aggressive behavior and the knife. After § 87(2)(b) exited, LT McMahon leaned into the car and retrieved the folding knife. He did not go into any other parts of the car. The knife was a gravity knife. § 87(2)(b) was arrested moments after he was removed from the car. Either PO Gunther or PO Reilly handcuffed § 87(2)(b) and searched him incident to his arrest. § 87(2)(b) was not frisked before he was arrested.

One of the officers took § 87(2)(b)'s car to the stationhouse. An officer probably searched the lungeable area of § 87(2)(b)'s car at the stationhouse; however LT McMahon was not certain when the car was searched or who searched it.

LT McMahon was never able to investigate § 87(2)(b)'s presence at § 87(2)(b). He did not recall PO Reilly instructing § 87(2)(b) to open his mouth, or looking inside § 87(2)(b)'s mouth.

Subject Officer: PO BRENDAN REILLY

- *PO Brendan Reilly is a white male, § 87(2)(b) with blonde hair and blue eyes. At the time of the incident, he was § 87(2)(b).*
- *On November 30, 2013, PO Reilly worked from 3:00 p.m. on the previous day, to 3:25 a.m., and was assigned to Housing. He worked in uniform, originally with PO Pimentel, but changed partners to work with LT McMahon and PO Gunther at 12:25 a.m., and they were assigned to an unmarked dark Ford Fusion.*

Memo Book

At 12:26 a.m., there was an observation of a double parked car in front of § 87(2)(b) upon attempting to stop it, it sped off with no lights on. The car was stopped at 234th Street and § 87(2)(b). The driver was making furtive movements and not complying with LT McMahon. He was also swinging at LT McMahon. The perpetrator was pulled out of the vehicle and handcuffed for officer safety. In the lungeable area of the car a gravity knife was found. At 12:33 a.m., § 87(2)(b) was arrested for § 87(2)(b) (encl. C 1-4).

Arrest Report, Property Vouchers and Criminal Court Complaint

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Statement

On January 15, 2014, and March 26, 2014, PO Reilly was interviewed at the CCRB (encl. C 15-20). § 87(2)(g)
§ 87(2)(b)

There was a young male standing outside the front passenger's side window of § 87(2)(b)'s car, and a third individual, a teenager, standing nearby on the sidewalk. PO Reilly could not tell what they were doing. He did not see them make contact or exchange any items.

About one hour earlier PO Reilly was involved in the arrests of two individuals outside § 87(2)(b) for engaging in a drug transaction. That incident had involved someone pulling up to the location in a car, double parking, and another individual coming up to the car and engaging in a narcotics transaction.

The officers decided to stop § 87(2)(b) for being double parked. They began to make a U-turn, and § 87(2)(b) immediately pulled away, driving northbound on § 87(2)(b) with his lights off. The man that had been standing next to the car began walking into § 87(2)(b). PO Reilly believed that § 87(2)(b) sped off due to the presence of the officers, as he did so at a high speed and immediately after they began to make the U-turn. The officers wanted to investigate whether § 87(2)(b) was purchasing narcotics. They suspected that he could have been buying narcotics as he had been parked outside of a known drug location, there was a man standing outside his car, and because he sped off after the officers made the U-turn to approach him.

The officers had not discussed their observations of § 87(2)(b) or what they would do when they stopped him. PO Reilly could not recall whose decision it was to stop § 87(2)(b). PO Reilly was not sure if their intention was to issue § 87(2)(b) a VTL summons.

They turned on their lights and sirens, and pulled § 87(2)(b) over two blocks down the road. LT McMahon opened the driver's door and started speaking with § 87(2)(b). PO Reilly could not recall what they said, but LT McMahon asked § 87(2)(b) what he had been doing in the area.

PO Reilly approached the passenger side of § 87(2)(b)'s vehicle and asked § 87(2)(b) to open his mouth to see if § 87(2)(b) had drugs in his mouth. § 87(2)(b) could have hidden drugs in his mouth in the time it had taken the officers to pull § 87(2)(b) over. It is also a place that people commonly hide drugs. PO Reilly never saw § 87(2)(b) place anything in his mouth. § 87(2)(b) complied. There was nothing in § 87(2)(b)'s mouth.

PO Reilly could not recall if LT McMahon ever directed profanity at § 87(2)(b) and could not recall whether he said, "I did not see your fucking kids." PO Reilly never made that statement, nor did PO Gunther.

PO Reilly could not describe the center console area of § 87(2)(b)'s vehicle. He did not recall what it looked like, or whether he saw any items there. PO Reilly was shown a picture of the interior of a 2006 Nissan Maxima (encl. E 12), but it did not refresh his memory of what the interior of § 87(2)(b)'s car looked like. He did not see the knife in the center console area; the first time he saw it was when LT McMahon showed it to him.

After yelling at LT McMahon, § 87(2)(b) started reaching towards the center console or area between the center console and the driver's seat, with his right hand. § 87(2)(b) did this several times, although PO Reilly could not recall exactly how many times. § 87(2)(b) also waved his left arm towards LT McMahon in a threatening manner. These were the "furtive movements" and "swinging towards LT McMahon" motions that he noted in his memo book.

§ 87(2)(b) did not strike LT McMahon. LT McMahon blocked § 87(2)(b)'s swing with his hand against § 87(2)(b)'s forearm. At no other point did LT McMahon make physical contact with § 87(2)(b). LT McMahon never made contact with § 87(2)(b)'s neck, and neither he nor any officer choked § 87(2)(b).

§ 87(2)(b) was brought to the back of the car and handcuffed. PO Reilly then frisked § 87(2)(b). PO Reilly could not recall where exactly he frisked § 87(2)(b) but it was a routine pat down which is usually the waistband. PO Reilly frisked § 87(2)(b) for safety, to make sure he did not have any weapons. § 87(2)(b)'s movements caused PO Reilly to suspect that he had a

weapon on him. There were no additional factors that led PO Reilly to believe § 87(2)(b) had a weapon, and PO Reilly could not recall if there was anything about § 87(2)(b)'s clothing that indicated he was carrying a weapon, such as a bulge. Nothing was found during the frisk.

During this time, LT McMahon searched the lungeable area of the car because § 87(2)(b)'s movements led them to suspect that there was a weapon there; LT McMahon never told PO Reilly why he searched the car.

PO Reilly did not see where LT McMahon searched, but he saw him enter through the driver's side door and he was inside the car for approximately 30 seconds. LT McMahon exited the car and showed PO Reilly a knife he found in the center console. PO Reilly could not recall if LT McMahon told him where in the center console he found the knife. The knife was an illegal gravity knife.

PO Reilly stated in the Criminal Court Complaint that he observed § 87(2)(b) with a gravity knife because LT McMahon showed it to him.

After recovering the knife, PO Reilly considered § 87(2)(b) under arrest. LT McMahon drove § 87(2)(b)'s car back to the stationhouse, as there was no one that they could leave the car with.

PO Reilly did not know if anyone searched § 87(2)(b)'s car at the stationhouse. PO Reilly did not search § 87(2)(b)'s car. LT McMahon parked § 87(2)(b)'s car behind the stationhouse, and gave PO Reilly the keys. PO Reilly moved the car from the back of the stationhouse to the front. PO Reilly released § 87(2)(b) and returned his keys to him.

Subject Officer: PO MICHAEL GUNTHER

- *PO Michael Gunther is a white male, § 87(2)(b) with brown hair and hazel eyes. At the time of the incident, he was § 87(2)(b).*
- *On November 30, 2013, PO Gunther worked from 3:00 p.m. on the previous day, to 2:05 a.m., and was assigned to conditions. He worked in uniform with PO Reilly and LT McMahon.*

Memo Book

At 11:20 p.m., there were two arrests by PO Grege for § 87(2)(b). A car was double parked in front of a building at § 87(2)(b) and West 231st Street, and drugs were found on the ground and on the passenger side of the vehicle. At 12:09 a.m., the arrest was transferred to PO Pimentel. At 12:25 a.m., PO Gunther went back on patrol. At 12:26 a.m., PO Gunther observed a double parked car in front of § 87(2)(b). When he attempted to stop the car it sped off with no headlights or tail lights on. The car was stopped at 234th Street and § 87(2)(b). The driver attempted to get out of the car and attack LT McMahon on the driver's side. He was pulled out of the vehicle and brought to the back of the vehicle, where he was detained. LT McMahon found one gravity knife in the vehicle center console, due to the aggressiveness of the driver, grabble area. There was one arrest by PO Reilly at 12:33 a.m. At 12:35 a.m. they arrived at the 50th Precinct stationhouse with the male prisoner. (encl. C 29-35).

CCRB Statement

On February 21, 2014, PO Gunther was interviewed at the CCRB (encl. C 36-39). § 87(2)(g)

PO Gunther was also involved in the arrests that occurred earlier that night at § 87(2)(b). PO Gunther's observations of § 87(2)(b)'s car corroborated LT McMahon's and PO Reilly's.

PO Reilly approached the passenger's side of the car, and LT McMahon approached the driver's side. Seconds later, PO Gunther exited the police car and approached, standing behind LT McMahon by the back seat on the driver's side of the car.

LT McMahon opened the driver's side front door, and PO Reilly opened the front passenger's side door. LT McMahon asked § 87(2)(b) why he had not stopped. § 87(2)(b) stared forward, and then screamed, "You just saw me drop off my fucking kids!" LT McMahon said, "How was I supposed to know those were your kids?" § 87(2)(b) screamed again, "You just saw me drop off my fucking kids!" and then unclicked his seatbelt and started to get out of the car, lunging towards LT McMahon.

LT McMahon was not able to ask § 87(2)(b) any questions, as § 87(2)(b) immediately escalated the situation. LT McMahon did not use any profanity with § 87(2)(b) and did not say, "I did not see your fucking kids." The interaction lasted no longer than one minute. PO Gunther did not see § 87(2)(b) make any movements inside the car aside from leaning towards the center console and unclicking his seatbelt, and then lunging towards LT McMahon.

When he lunged, § 87(2)(b) did not actually step out of the car. LT McMahon put his arm up to make § 87(2)(b) stop. PO Gunther did not know if LT McMahon made physical contact with § 87(2)(b). No officer grabbed § 87(2)(b) by the neck during the incident. LT McMahon said to PO Gunther and PO Reilly, "He's gotta come out," and PO Reilly came over to the driver's side. PO Reilly and PO Gunther both took hold of § 87(2)(b)'s arms, and he stepped out of the vehicle. They did not need to physically pull § 87(2)(b) out.

PO Gunther and PO Reilly took § 87(2)(b) to the back of the car. After reaching the rear of the car, either PO Gunther or PO Reilly frisked § 87(2)(b). § 87(2)(b) was frisked for a weapon, as his aggressive and evasive behavior made the officers fear for their safety and suspect that he had a weapon on him. There were no other reasons for the frisk.

Immediately after § 87(2)(b) was removed from the car, LT McMahon entered § 87(2)(b)'s car through the driver's side door. PO Gunther did not know where inside the car LT McMahon searched. The search lasted only seconds, after which LT McMahon exited and said, "He's 92," meaning they should place § 87(2)(b) under arrest. This was a few seconds into the frisk of § 87(2)(b) and so a complete frisk was not conducted before he was placed under arrest. § 87(2)(b) was handcuffed, and then searched incident to the arrest.

LT McMahon later informed PO Gunther, that he found a gravity knife in the center console area. PO Gunther was not sure if this meant inside the center console compartment or on top of the center console. From where PO Gunther had been standing after they approached the car, he could not see the center console area of the car.

PO Gunther did not know if § 87(2)(b)'s car was searched at the stationhouse. The officers were never able to investigate what § 87(2)(b) had been doing in the area.

NYPD Documents

Event Summary

The event summary for the 50th Precinct shows no events related to the incident (encl. D 1-2).

Arrest Reports

§ 87(2)(b)

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- [§ 87(2)(b)] filed a Notice of Claim with the City of New York on [§ 87(2)(b)], claiming emotional and psychological pain and suffering and seeking a yet to be determined amount as redress (encl. E 6-11). On [§ 87(2)(b)], a 50H hearing was held. [§ 87(2)(b)] provided a copy of the hearing's transcript to the CCRB; however, it was missing pages. [§ 87(2)(b)] confirmed over the phone on December 11, 2014, that he is not in possession of any additional pages or transcripts.

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. A 7).

Subject Officers CCRB History

- PO Brendan Reilly has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. A 6).
- LT Paul McMahon has been a member of the service for 23 years and there are six substantiated CCRB allegations against him. He is the subject of 74 allegations in 26 CCRB cases (encl. A 1-5).
 - In case 9803717, a physical force allegation was substantiated against LT McMahon for lifting a civilian up by his handcuffs. Charges were recommended by the CCRB. LT McMahon was found not guilty after a department trial. In this case, there was also an unsubstantiated allegation that LT McMahon grabbed a civilian's neck by the windpipe with one hand.
 - In case 200003842, a strip search allegation was substantiated against LT McMahon. Charges were recommended by the CCRB, and no disciplinary action was taken by the NYPD.
 - In case 200205489, two frisk allegations and a vehicle search allegation were substantiated against LT McMahon. Charges were recommended by the CCRB and no disciplinary action was taken by the NYPD.
 - In case 200501381, a vehicle search allegation was substantiated against LT McMahon. Charges were recommended by the CCRB, and LT McMahon was given instructions by the NYPD.

- In case 200507885, an entry allegation was exonerated against LT McMahon, as he was the supervisor of a group of officers that entered a residence. In this case there was an allegation that an unidentified officer grabbed a civilian by the neck with one hand and held it there for several seconds. The allegation was denied by LT McMahon and all other officers, and the victim did not cooperate with the investigation. The allegation was closed as victim uncooperative.

Conclusion

Identification of Subject Officers

LT McMahon, PO Reilly, and PO Gunther confirmed that they interacted with § 87(2)(b)

Allegation not pled

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Brendan Reilly questioned § 87(2)(b)

§ 87(2)(b) was double parked outside of § 87(2)(b) with his headlights off as he spoke to his son, who stood on the sidewalk near the curb for approximately two minutes. He did not exchange any items with his son, and his son did not approach § 87(2)(b)'s parked car after exiting. § 87(2)(b) drove away and forgot to turn on his headlights, and the officers pulled him over. He pulled over roughly one block away. PO Reilly approached § 87(2)(b)'s vehicle and ordered § 87(2)(b) to open his mouth. § 87(2)(b) complied.

The officers arrested two individuals approximately one hour prior to this incident in front of § 87(2)(b) which is a drug prone location. One of the arrested individuals was alleged to have engaged in a drug transaction through the car window while the car was double parked outside of the location.

PO Reilly asked § 87(2)(b) to open his mouth because he wanted to see if § 87(2)(b) had hidden any drugs in his mouth. PO Reilly did not see § 87(2)(b) place anything in his mouth, but § 87(2)(b) had time to do so before he pulled over. The mouth is a common place for people to hide drugs.

An officer's request that a civilian opens his mouth is a common law inquiry, and must be supported by a founded suspicion that criminality is afoot. (*People v. Bethea*, 67 A.D. 3d 502 (App. Div. 1st Dep't. 2009) (encl. i-ii). In *People v. Bethea*, the defendant began walking away when an officer asked to speak to him and appeared to place an object into his mouth.

§ 87(2)(g)

Therefore it is recommended that *allegation A* be *substantiated*.

Allegation B – Discourtesy: LT Paul McMahon spoke rudely to § 87(2)(b)

Allegation C – Force: Lt Paul McMahon used a chokehold against § 87(2)(b)

§ 87(2)(b) stated that LT McMahon repeatedly told him, "I did not see your fucking sons," referred to his, "fucking car," and grabbed him by the base of his neck and squeezed. § 87(2)(b)'s breathing was not restricted and he did not sustain any injuries.

LT McMahon denied using profanity and making contact with § 87(2)(b)'s neck, and PO Gunther corroborated this. PO Reilly denied that LT McMahon choked § 87(2)(b) and could not recall if he directed any profanity at him.

§ 87(2)(g)

It is therefore recommended that *allegations B and C* be closed as *unsubstantiated*.

Allegation D – Abuse of Authority: PO Brendan Reilly frisked § 87(2)(b)

§ 87(2)(b) testified that he shouted and waved his left hand at LT McMahon, shaking his finger. He denied making any other movements. After being removed from the car, either PO Reilly or PO Gunther frisked him.

PO Reilly and PO Gunther stated that the frisk of § 87(2)(b) began before LT McMahon told them about the knife in § 87(2)(b)'s vehicle. LT McMahon stated that § 87(2)(b) was not frisked until after he was arrested. § 87(2)(g)

PO Reilly frisked § 87(2)(b) to make sure he did not have a weapon on him. PO Reilly suspected that § 87(2)(b) may have had a weapon because he was irate, and made furtive movements in the car. § 87(2)(b) made reaching motions towards the center console or area between the center console and the driver's seat, with his right hand. There was nothing about § 87(2)(b)'s person that indicated he was hiding a weapon, such as a bulge.

PO Gunther did not see § 87(2)(b) make any movements inside the car, apart from leaning to one side to undo his seatbelt and lunging towards LT McMahon. LT McMahon described § 87(2)(b) waving his hand towards him and lunging towards the window with his right hand out pointing at LT McMahon.

Officers may frisk an individual if they have reasonable suspicion that the individual is secreting a weapon on their person, which could threaten their safety (*People v. De Bour* 40 N.Y. 2d 210, 1976) (encl. iii-xii).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that *allegation D* be *substantiated*.

Allegation E – Abuse of Authority: LT Paul McMahon searched the car in which § 87(2)(b) was an occupant.

LT McMahon testified that he observed a knife inside § 87(2)(b)'s vehicle on top of the center console which he retrieved from the vehicle. § 87(2)(b) testified that the knife was inside of the closed center console compartment. § 87(2)(b) also alleged that when his car was returned to him at the stationhouse, items inside the car had been moved around.

LT McMahon stated that he saw a knife in plain view on top of the center console area while speaking to § 87(2)(b). LT McMahon could not describe the location of the knife in any more

detail, and could not recall what the center console area of the car looked like. LT McMahon could not tell if it was an illegal knife, but felt it was a threat to his safety. He removed § 87(2)(b) from the vehicle and then retrieved the knife. LT McMahon did not search within the vehicle. The knife was an illegal gravity knife. LT McMahon did not recall driving § 87(2)(b)'s car back to the stationhouse, and did not know if the car was searched there.

PO Gunther and PO Reilly corroborated that LT McMahon entered the vehicle after § 87(2)(b) was removed for a few seconds. Neither PO Gunther nor PO Reilly saw the knife until LT McMahon recovered it. LT McMahon drove § 87(2)(b)'s car to the stationhouse, but neither officer knew whether the car was searched there.

“Where a knife (even if not necessarily an illegal one) becomes plainly visible to a police officer in the course of an authorized common-law inquiry . . . the officer is permitted to seize [the knife], so long as the ensuing intrusion is ‘minimal’ and ‘consonant with the respect and privacy of the individual’” People v. Miranda 19 N.Y. 3d 912, 2012 (encl. xiv-xv); People v. Terrance, 101 A.D. 3d 624, N.Y. App. Div. 1st Dep’t., 2012) (encl. xvi-xvii)

It is undisputed that the stop of § 87(2)(b)'s vehicle was justified based on the VTL violation.

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§ 87(2)(g) As such, it is recommended that *allegation E* be closed as *unsubstantiated*.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

